

CHAPTER 13

An Act to increase the borrowing powers of the British Overseas Airways Corporation and the British European Airways Corporation. [22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The limit imposed by section twelve of the Air Corporations Act, 1949, as amended by subsection (1) of section one of the Air Corporations Act, 1956, on the amount outstanding at any time of money borrowed by the British Overseas Airways Corporation or the British European Airways Corporation shall be raised—

Increase of borrowing powers of air corporations, 12, 13 & 14 Geo. 6. c. 91. 5 & 6 Eliz. 2. c. 3.

(a) as respects money borrowed by the British Overseas Airways Corporation, from one hundred and sixty million pounds to one hundred and eighty million pounds;

(b) as respects money borrowed by the British European Airways Corporation, from sixty million pounds to ninety-five million pounds.

(2) In subsection (2) of section one of the said Act of 1956 (which confers certain additional borrowing powers on the British Overseas Airways Corporation but provides that nothing in that subsection shall authorise that corporation to borrow in excess of the limit imposed by subsection (1) of the said section twelve as amended by subsection (1) of the said section one), for the reference to subsection (1) of the said section one there shall be substituted a reference to subsection (1) of this section.

2.—(1) This Act may be cited as the Air Corporations Act, Short title, 1960; and this Act and the Air Corporations Acts, 1949 to 1956, citation may be cited together as the Air Corporations Acts, 1949 to 1960. and repeal.

(2) Subsection (1) of section one of the Air Corporations Act 1956, is hereby repealed.

CHAPTER 14

ARRANGEMENT OF SECTIONS

Section

1. Extension of period during which British films are to be shown, and change in renters' licensing year and quota period.
2. Newsreels.
3. Non-standard films.
4. Combination of quota periods for purposes of s. 1 of Act of 1948.

Section

5. Exemptions and reliefs, and itinerant exhibitors.
6. Labour costs.
7. Use of film studio for sound recording.
8. Inclusion of studio or maker in credit titles.
9. Films made in accordance with international agreements.
10. Films using old material.
11. Amendment of register, and registration of alternative particulars.
12. Prohibition of use of unregistered title.
13. Quarterly exhibitor's licence.
14. Maximum fees.
15. Substitution of playing time for length.
16. Minor and consequential amendments and repeals.
17. Interpretation, construction, short title, citation, commencement and extent.

SCHEDULES:

First Schedule—Maximum fees.

Second Schedule—Minor and consequential amendments.

Third Schedule—Enactments repealed.

An Act to amend the Cinematograph Films Acts, 1938
and 1948. [22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of period during which British films are to be shown, and change in renters' licensing year and quota period.

1.—(1) Section one of the Act of 1948 (which requires exhibitors to include British films among the films exhibited by them to the public) shall continue in force until the end of the year nineteen hundred and sixty-seven and shall then expire.

(2) The periods which for the purposes of the Acts of 1938 and 1948 are the first renters' licensing year and the first quota period beginning after the end of March, nineteen hundred and sixty, shall end with the year nineteen hundred and sixty and nineteen hundred and sixty-one respectively; and thereafter the renters' licensing year and the quota period for the purposes of those Acts shall be any calendar year during which section one of the Act of 1948 is in force.

Newsreels.

2.—(1) Where the condition specified in paragraph (a) of subsection (1) of section twenty-five of the Act of 1938 and the further conditions specified in subsection (2) of this section are fulfilled in respect of a film consisting wholly or mainly of photographs which, at the time when they were taken, were means of communicating news, the conditions imposed by the said subsection (1) shall be deemed to be fulfilled in respect of

the film and, notwithstanding paragraph (a) of section thirty-five of that Act (which excepts such films from the application of the Acts of 1938 and 1948)—

- (a) the Board of Trade shall, upon application duly made to them not later than the expiry of section one of the Act of 1948, register the film as a British film and (whatever its labour costs per minute of playing time, and notwithstanding anything in section ten of this Act) as an exhibitors' quota film; and
- (b) where the film is so registered the Acts of 1938 and 1948 shall apply to it, but subject to the following provisions of this section.

A film which is eligible for registration by virtue of this section or has been so registered is in the following provisions of this section referred to as a newsreel.

(2) The said further conditions are—

- (a) that the film was edited in the United Kingdom and its commentary was written and recorded there; and
- (b) that each of the persons who edited the film or spoke the commentary was a British subject or citizen of the Republic of Ireland.

(3) Section twenty-four of the Act of 1938 (which relates to applications for registration) shall apply in relation to a newsreel with the omission of subsection (2) (which prevents an application from being entertained unless the film has been or is to be trade-shown); but no application for the registration of a newsreel shall be entertained unless it is accompanied—

- (a) by a statutory declaration that the newsreel is one of a sequence of which not less than one a week is made and delivered to exhibitors in Great Britain for public exhibition; and
- (b) by an undertaking that not less than three-quarters of all the photographs together comprised in the newsreels of that sequence registered during the quarterly period in which the application is made will have been taken in the United Kingdom or any other country which is among those referred to by the expression "His Majesty's dominions" as used in the Act of 1938;

and where an application for the registration of a newsreel is made more than five days after the newsreel is first delivered to an exhibitor in Great Britain for public exhibition, it shall not be entertained unless the Board of Trade are satisfied that the delay was due to special circumstances and was not intentional.

(4) Where at the end of a quarterly period the undertakings given in that period under paragraph (b) of subsection (3) of this section in respect of the newsreels of any sequence have not been fulfilled the Board of Trade shall cancel the registration of all newsreels of that sequence which were registered during that period and shall publish the cancellation in the Board of Trade Journal; and the cancellation shall have effect as from the date of publication.

(5) Where a newsreel has been registered it shall be deemed for the purposes of the Acts of 1938 and 1948 to have been registered on the date on which it was first delivered to an exhibitor in Great Britain for public exhibition; but where a renter has delivered a newsreel to an exhibitor before the date on which it is registered he shall be deemed to have complied with the requirements of section thirty-three of the Act of 1938 (which requires certain information to be given to an exhibitor) if, and only if, he has notified him, at such time and in such manner as may be prescribed, of such particulars of the newsreel as may be prescribed and of his intention to apply for its registration.

(6) Where a renter has notified an exhibitor of his intention to apply for the registration of a film as a newsreel and either the film is not eligible for registration by virtue of this section or he does not apply for its registration within the time within which the application can be entertained under subsection (3) of this section, he shall be liable on summary conviction to a fine not exceeding two hundred and fifty pounds.

(7) Sections seventeen, eighteen and twenty of the Act of 1938 (which prohibit and invalidate blind booking and advance booking) shall not apply in relation to registered newsreels; and section twenty-four of that Act (which relates to applications for registration) shall have effect, in relation to the registration of newsreels, as if the proviso to subsection (3) (which requires an applicant to furnish a declaration that no agreement invalidated by the said section twenty has been made) were omitted.

Non-standard
films.

3. In section seven of the Act of 1948 (which provides that the Acts of 1938 and 1948 shall not apply to films other than standard films but may be so applied by regulations made by the Board of Trade) the words in subsection (1) defining standard films shall be omitted and at the end of the section there shall be added the following subsection:—

“ (4) In this section—

‘ film ’ includes any record, however made, of a sequence of visual images, which is a record capable of being used as a means of showing that sequence as a moving picture; and

'standard film' means a film of a width of thirty-five millimetres which is designed to be exhibited by projection from one reel at a time."

4.—(1) Where a film registered as a foreign film is to be exhibited to the public at any theatre, and before it is so exhibited an application for a direction under this section is made to the Board of Trade by the exhibitor who exhibits films to the public at that theatre, the Board may, if they think fit, direct that, if the film is so exhibited, and the period during which it is so exhibited is or includes such a continuous period exceeding eight weeks as is specified in the direction, the requirements imposed by section one of the Act of 1948 shall be deemed to be complied with in relation to that theatre in the relevant quota period, if they are so complied with in that period and the succeeding quota period taken together.

Combination of quota periods for purposes of s. 1 of Act of 1948.

(2) The relevant quota period for the purposes of this section is the quota period in which the film is exhibited as aforesaid or, if it is so exhibited in more than one quota period, that one of them which the exhibitor elects.

(3) Before giving a direction under this section the Board of Trade shall consult the Cinematograph Films Council and consider its advice in the matter.

5. For section four of the Act of 1948 there shall be substituted the following section:—

Exemptions and reliefs, and itinerant exhibitors.

4.—(1) Where films are exhibited to the public at a theatre in any locality (in this subsection referred to as the local cinema) and the Board of Trade are satisfied—

- (a) that films are exhibited, in competition with the local cinema, at not less than two other theatres in the same locality; or
- (b) that films are exhibited, in competition with the local cinema, at another theatre in the same locality and that films are not normally exhibited to the public at the local cinema for a continuous period of more than three days, not counting Sundays; and
- (c) in either case, that owing to circumstances beyond the control of the exhibitor who exhibits films at the local cinema films registered as British films are exhibited at those other theatres or that other theatre on dates earlier than the dates on which he is able to exhibit the same films at the local cinema,

the Board may, if they think fit, direct that in relation to the exhibition of films at the local cinema the

prescribed percentage for the purposes of subsection (2) or subsection (3) of section one of this Act shall be reduced, in the case of such quota period or periods as may be specified in the direction, to such percentage as may be so specified.

(2) Before giving a direction under subsection (1) of this section the Board shall consult the Cinematograph Films Council and consider its advice in the matter.

(3) Where the Board of Trade are satisfied that the average net box office receipts of a theatre during the year ending six months before the beginning of any quota period did not exceed one hundred and twenty-five pounds per week the Board shall direct that the foregoing provisions of this Act shall not apply to the exhibition of films at that theatre during that quota period.

(4) The Board of Trade, after consulting the Cinematograph Films Council and considering its advice in the matter, may by order made by statutory instrument direct that subsection (3) of this section shall have effect as if such other amount as may be specified in the order were substituted therein for one hundred and twenty-five pounds; but a statutory instrument containing such an order shall have no effect unless approved by a resolution of each House of Parliament.

(5) The reference in subsection (3) of this section to the net box office receipts of a theatre shall be construed as a reference to the receipts from the sale of seats at all performances at which registered films are shown to the public, after deduction of entertainments duty (within the meaning of the Entertainments Duty Act, 1958) paid or payable to the Commissioners of Customs and Excise and of so much of the levy imposed under section two of the Cinematograph Films Act, 1957, as is attributable to those receipts.

(6) For the purposes of the foregoing provisions of this Act (including subsection (3) of this section) all registered films exhibited under the authority of a licence extending (in accordance with the proviso of subsection (4) of section nine of the principal Act) to the exhibition of films at more than one theatre shall be deemed to be exhibited at one theatre at which no other registered films are exhibited to the public.

6 & 7 Eliz. 2.
c. 9.

5 & 6 Eliz. 2.
c. 21.

(7) An order under subsection (4) of this section may be varied or revoked by a subsequent order made thereunder."

6.—(1) In the definition of "labour costs" in section forty-four of the Act of 1938 (which includes payments attributable to the making of a film only if they are made by the maker of the film and excludes payments made to officers and servants of an undertaking concerned with the making of a film who are engaged in a clerical or administrative capacity)—

- (a) the words "by the maker of the film" shall be omitted;
- (b) for the words "in an administrative or clerical capacity as an officer or servant" there shall be substituted the words "in a clerical capacity as a servant"; and
- (c) the following paragraph shall be added at the end—

"(c) payments paid or payable to a person who is engaged in an administrative capacity as an officer or servant of an undertaking concerned with the making of a film shall not be taken to be attributable to the making of the film except in so far as they are payments in respect of services directly concerned with the making of that film."

(2) If, upon any application for the registration of a film under Part III of the Act of 1938, being an application in connection with which it is material to ascertain—

- (a) the labour costs of the film, or
- (b) the proportion of those costs which represents payments in respect of the labour or services of persons of any particular class,

it appears to the Board of Trade that no sum or a sum so small as not bona fide to represent all the remuneration therefor is paid or payable as part of those costs in respect of the labour or services of any particular person, the Board may direct that such sum, or as the case may be such greater sum, as may be specified in the direction shall be treated as so paid or payable.

7. In the definition of "studio" in section forty-four of the Act of 1938 (which provides that a studio shall be deemed to be used in making a film if any part of that film, or of any other film used in making it, consists of photographs taken in that studio) there shall be inserted, after the words "photographs taken", the words "or sound recordings made".

Use of film
studio for
sound
recording.

8.—(1) For the purposes of subsection (4) of section twenty-five of the Act of 1938 (which requires a film registered under Part III of that Act to be registered as a British film if the conditions imposed by subsection (1) of that section are fulfilled, and

Inclusion of
studio or
maker in
credit titles.

as a foreign film if they are not fulfilled) the said conditions shall not be treated as fulfilled in respect of a long film unless the name and address of the studio used in making the film, or, if none was used, the name and address of the maker of the film, are included at the beginning or at the end of the film so as to be displayed, when the film is exhibited, for not less than ten seconds in letters clearly legible to the audience.

(2) For the purposes of subsection (1) of this section, where the name of a place (with or without other particulars) is included as mentioned therein but not the name of the country in which that place is, the inclusion shall not be deemed to be the inclusion of an address.

Films made in accordance with international agreements.

9.—(1) Her Majesty may by Order in Council provide for treating films which are made in accordance with the terms of any agreement between Her Majesty's Government in the United Kingdom and any other government or any international organisation or authority, but with respect to which the conditions imposed by subsection (1) of section twenty-five of the Act of 1938 are not fulfilled, as if they were films with respect to which those conditions are fulfilled.

(2) An Order in Council under this section may be varied or revoked by a subsequent Order in Council.

Films using old material.

10. Where parts of a film to be registered as a British film are derived, as regards the photographs comprised therein, from—

(a) a registered film ; or

(b) any film (whether a standard film or not) the maker of which was not the maker of the film to be registered ; and the playing time of those parts exceeds ten per cent. of the playing time of the whole film, the film shall not be registered as an exhibitors' quota film except on the recommendation of the Cinematograph Films Council.

Amendment of register, and registration of alternative particulars.

11.—(1) Where a registered film is to have a title, playing time or other particulars differing from those recorded in the register, the Board of Trade shall, on application duly made to them not later than the expiry of section one of the Act of 1948, amend the register accordingly and issue to the applicant, in substitution for any certificate of registration previously issued in respect of the film, a certificate of registration specifying the particulars of the film as recorded in the register after the amendment.

(2) The Board of Trade shall, as soon as may be after the end of each week, publish in the Board of Trade Journal a list of films the registration of which was amended under this section in that week.

(3) An application under this section must be made by the person entitled to distribute or authorise the distribution of the film to exhibitors in Great Britain, and must be accompanied by the prescribed fee.

(4) More than one title, playing time, or such other particulars (if any) as may be prescribed may be recorded as alternatives in the register with respect to one film, either in pursuance of an application for its registration or in pursuance of an application under this section; and where more than one playing time or, if it is so provided by the regulations prescribing another particular, more than one such other particular is so recorded, the register shall distinguish the alternatives as belonging to different versions of the film, and each of those versions shall be treated for the purposes of the Acts of 1938 and 1948 as a separate film, except that the addition of a new version by an amendment of the register shall not be treated as the first registration of a film.

(5) Where a title, playing time or other particular of any film has been recorded in the register in addition to or in substitution for another, no renter shall, while section one of the Act of 1948 is in force, procure the giving by an exhibitor (whether for a consideration or not, and whether orally or in writing) of an undertaking which, if legally binding, would impose on the exhibitor an obligation, either actual or contingent, to take delivery of the film, unless the renter has supplied to the exhibitor a statement in writing setting out all the titles, playing times, and other particulars which have ever been so recorded in respect of the film; and if any renter procures an undertaking in contravention of this subsection, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

12. If, on any occasion on which, before the expiry of section one of the Act of 1948, a registered film is delivered by a renter to an exhibitor in Great Britain for public exhibition at a theatre therein, the title of the film as so delivered on that occasion is not the registered title or, as the case may be, one of the registered titles, of the film, the renter shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds.

Prohibition
of use of
unregistered
title.

13.—(1) A licence under section nine of the Act of 1938 authorising a person to carry on business as an exhibitor at one theatre may be granted in respect of a quarterly period.

Quarterly
exhibitor's
licence.

(2) In relation to any theatre in respect of which a licence granted by virtue of this section is in force the provisions of the Acts of 1938 and 1948 and this Act shall have effect as if for the references to the quota period there were substituted references to the period in respect of which the licence is granted;

and subsection (2) of section five of the Act of 1948 (which enables the Board of Trade to secure the exhibition in any quota period of not more than six films recommended by a Selection Committee) shall have effect, in relation to such a licence, with the substitution of the word "two" for the word "six".

**Maximum
fees.**

14. The amounts which may be prescribed as the amounts of the fees payable on applications for the registration of films, for amendments of the register, or for licences under the Act of 1938 shall be amounts not exceeding those specified in the First Schedule to this Act; but the fees payable on an application for a renter's licence or exhibitor's licence in respect of the first renters' licensing year or the first quota period beginning after the commencement of this Act shall not exceed fifteen guineas and ten guineas respectively.

**Substitution
of playing
time for
length.**

15.—(1) Any matter which, but for this section, would fall to be determined for the purposes of the Acts of 1938 and 1948 and this Act by reference to the length of a film shall be determined for those purposes by reference to the playing time of the film.

(2) The registered playing time of any film registered before the coming into operation of this section shall be determined by treating every ninety feet of length as equivalent to a playing time of one minute.

**Minor and
consequential
amendments
and repeals.**

16.—(1) The enactments specified in the Second Schedule to this Act shall have effect subject to the amendments specified therein, being minor amendments and amendments consequential on the foregoing provisions of this Act.

(2) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

**Interpretation,
construction,
short title,
citation,
commence-
ment and
extent.
1 & 2 Geo. 6.
c. 17.**

17.—(1) In this Act—

"quarterly period" means a period of three months ending with the last day of March, June, September or December;

"the Act of 1938" means the Cinematograph Films Act, 1938;

**11 & 12 Geo.
6. c. 23.**

"the Act of 1948" means the Cinematograph Films Act, 1948;

and any expression used in this Act and in the Act of 1938 has the same meaning in this Act as in that Act.

(2) Any reference in this Act to any enactment is a reference thereto as amended, and includes a reference thereto as applied,

by or under any subsequent enactment including, except where the context otherwise requires, this Act; and any reference in this Act to the Act of 1938 includes a reference to that Act as reprinted in the Second Schedule to the Act of 1948.

(3) Any reference in any enactment to the Act of 1938 or the Act of 1948 shall be construed, as the case may require, as a reference thereto as amended by this Act or as including a reference to this Act; but nothing in this Act shall affect the operation, in relation to films registered before the year nineteen hundred and sixty-one, of subsection (2) of section eight of the Cinematograph Films Act, 1957 (which applies section twenty-five of the Act of 1938 for the purpose of determining whether a film is a British film).

(4) This Act may be cited as the Cinematograph Films Act, 1960, and this Act and the Cinematograph Films Acts, 1938 and 1948, may be cited together as the Cinematograph Films Acts, 1938 to 1960.

(5) This Act shall come into force on the first Sunday falling after the expiration of one month beginning with the day on which this Act is passed; except that—

(a) sections eleven to fifteen, the First Schedule, and Part I and paragraphs 10 and 11 of the Second Schedule shall come into force on the first day of October, nineteen hundred and sixty; and

(b) sections six to eight and ten, paragraphs 8, 14 and 15 of the Second Schedule, and so much of the Third Schedule as relates to section forty-four of the Act of 1938, shall come into force on the first day of January, nineteen hundred and sixty-one.

(6) This Act does not extend to Northern Ireland.

SCHEDULES

Section 14.

FIRST SCHEDULE

MAXIMUM FEES

	£	s.
On an application for the registration of a film ...	8	8
On an application to amend the register ...	4	4
On an application for a renter's licence ...	21	0
On an application for an annual exhibitor's licence ...	8	8
On an application for a quarterly exhibitor's licence ...	3	3

Section 16

SECOND SCHEDULE

MINOR AND CONSEQUENTIAL AMENDMENTS

PART I

AMENDMENTS AS TO LENGTH OF FILMS

1. The words "playing time" shall be substituted for the word "length", wherever it occurs in the following provisions of the Act of 1938 :—

- Section 8
- Section 12 (1) (a)
- Section 12 (2) (a)
- Section 23 (2) (a)
- Section 25 (3)
- Section 33 (1)
- Section 36 (1)

2. In section twenty-six of the Act of 1938 (which excludes from registration as an exhibitors' quota film a film whose total labour costs are less than ten shillings per foot) and in subsection (6) of section three of the Act of 1948 (which excludes such a film from the computation of the quota) for the words "ten shillings per foot" there shall be substituted the words "fifty pounds per minute of playing time".

3. In paragraph (a) of subsection (2) of section twenty-five of the Act of 1938, for the words "the number of feet comprised in the length" there shall be substituted the words "ninety times the number of minutes comprised in the playing time".

4. In section forty-four of the Act of 1938 the following definitions shall be substituted respectively for the definitions of "long film", "registered length", "serial film or series of films" and "short film", that is to say :—

"long film" means a film the playing time of which is not less than thirty-three and one-third minutes ;

"registered playing time", in relation to a film, means the playing time of the film as registered for the time being ;

"serial film or series of films" means a serial film or series of films consisting of a number of parts not exceeding fifteen, each of which has a playing time of not more than thirty-three and one-third minutes, and which are intended to be exhibited on successive dates at intervals not exceeding fourteen days ;

"short film" means a film the playing time of which is less than thirty-three and one-third minutes; 2ND SCH.

and in paragraph (b) of the definition of "theatre", for the words from "if the total length" to the end of the paragraph there shall be substituted the words "if the total playing time of the registered film or films exhibited in the course of any one of those entertainments does not exceed twenty-five minutes".

5. For the words "exhibited length" in subsection (3) of section one of the Act of 1948 and in subsection (4) of section three of that Act there shall be substituted the words "showing time" and for the words "registered length" in the said subsection (4) the words "registered playing time".

PART II

OTHER AMENDMENTS

The Cinematograph Films Act, 1938

6. In subsection (2) of section nine, for the words "in any quota period" there shall be substituted the words "at any time while section one of the Cinematograph Films Act, 1948, is in force", and for the words, in paragraph (b), "an application for such a licence as aforesaid in respect of that period" there shall be substituted the words "an application for a licence authorising him to carry on business as aforesaid at that time". 11 & 12 Geo. 6. c. 23.

7. In subsection (1) of section thirteen (which enables the Board of Trade to certify that failure to comply with the requirements of section one of the Act of 1948 or with the conditions imposed by a licence was due to circumstances beyond the control of any person) the proviso (which requires the Cinematograph Films Council to be consulted on any application under that subsection) shall be omitted and for the words "upon application made to them" there shall be substituted the words "after consulting the Cinematograph Films Council and considering its advice in the matter".

8. In section twenty-five (which relates to the conditions to be satisfied for a film to be registered as a British film) the words "ordinarily resident" shall be substituted for the word "domiciled" in paragraph (c) of subsection (1) and in sub-paragraph (i) of paragraph (a) of subsection (2), and the words "ordinarily resident as aforesaid" for the words "so domiciled" in sub-paragraph (ii) of the said paragraph (a).

9. In subsection (1) of section thirty-four (which requires the Board of Trade to refer unresolved disputes as to wages or conditions in the film industry to the industrial court) for the words "the Board of Trade" there shall be substituted the words "the Minister of Labour".

10. In subsection (1) of section forty (which specifies the matters which may be prescribed by regulations of the Board of Trade) after the words in paragraph (a) "registration of films" there shall be inserted the words "for amendments of the register".

11. In subsection (2) of section forty (which relates to fees) for the words "the Second Schedule to this Act" there shall be substituted the words "the First Schedule to the Cinematograph Films Act, 1960."

2ND SCH.

12. In section forty-three (which specifies the persons authorised to act on behalf of the Board of Trade) after the words "the President of the Board" there shall be inserted the words "any Minister of State with duties concerning the affairs of the Board".

13. In the definition of "renters' licensing year" in section forty-four, for the words "before the expiry of section one of the Cinematograph Films Act, 1948" there shall be substituted the words "before April, nineteen hundred and sixty, and thereafter has the meaning assigned to it by section one of the Cinematograph Films Act, 1960."

14. In the definition of "studio" in section forty-four, after the word "building", in each place where it occurs, there shall be inserted the words "or group of buildings".

15. In the definition of "trade-shown" in section forty-four, for the words, in paragraph (b), "the first four consecutive days" there shall be substituted the words "the first six weeks".

16. Subsection (8) of section forty-four (which extends the meaning of the expression "His Majesty's dominions" so as to include British protectorates) shall have effect, and be deemed always to have had effect, as if after the word "protectorate" there were inserted the words "or protected State".

The Cinematograph Films Act, 1948

17. In subsection (4) of section one (which defines the expression "quota period") for the words "during which this section is in force" there shall be substituted the words "ending before October, nineteen hundred and sixty, and thereafter has the meaning assigned to it by section one of the Cinematograph Films Act, 1960".

18. Subsection (5) of section one (which provides that the requirements imposed by that section in respect of any quota period shall also be complied with in respect of the first six months of that period) shall cease to have effect.

19. At the end of subsection (5) of section three (which provides that a British film exhibited at a theatre on any day shall not be deemed to be exhibited during the normal hours in the ordinary programme unless the whole of it is exhibited at least once between the hours of five and ten p.m.) there shall be added the words "or such other hours as the Board of Trade may on the application of the exhibitor direct".

20. In subsection (6) of section three (which, as amended by paragraph 2 of this Schedule, excludes from the computation of the exhibitors' quota any film whose total labour costs are less than fifty pounds per minute of playing time) for the words "any such film" there shall be substituted the words "any film registered as a British film which is not registered as an exhibitors' quota film".

The Cinematograph Films Act, 1957

21. In subsection (2) of section eight the words "to which the said Act of 1938 applies" shall be omitted, and for the words "that Act" there shall be substituted the words "the said Act of 1938".

THIRD SCHEDULE

Section 16.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 17.	The Cinematograph Films Act, 1938.	In section thirteen, the proviso to subsection (1). In section forty-four, in the definition of "labour costs" in subsection (1), the words "by the maker of the film". The Second Schedule.
11 & 12 Geo. 6. c. 23.	The Cinematograph Films Act, 1948.	In section one, subsections (5) and (7). In section three, in subsection (4), the words "or in the first six months of any quota period". In section seven, in subsection (1), the words "that is to say films of the width of thirty-five millimetres".
5 & 6 Eliz. 2. c. 21.	The Cinematograph Films Act, 1957.	In section eight, in subsection (2), the words "to which the said Act of 1938 applies". Part III. Subsection (3) of section seventeen.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Cinematograph Films Act, 1938	1 & 2 Geo. 6. c. 17.
Cinematograph Films Act, 1948	11 & 12 Geo. 6. c. 23.
Cinematograph Films Act, 1957	5 & 6 Eliz. 2. c. 21.
Entertainments Duty Act, 1958	6 & 7 Eliz. 2. c. 9.